

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hilary Hudson	Team: Team # 3	CCRB Case #: 200711337	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/04/2007 10:00 PM	Location of Incident: Colonial Avenue and East 196th Street	Precinct: 45	18 Mo. SOL 2/4/2009	EO SOL 2/4/2009	
Date/Time CV Reported Tue, 08/07/2007 11:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/07/2007 11:57 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mario Vazquez	03166	937681	045 PCT
2. Officers			
3. An officer			
4. SGT Mervin Bennett	00255	920019	045 PCT
5. POM Earl Quinones	21340	942392	045 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Moshier	29810	930788	045 PCT
2. POM James Murphy	14990	928833	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Mario Vazquez	Abuse: PO Mario Vazquez stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
B.POM Earl Quinones	Abuse: PO Earl Quinones stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
C. An officer	Force: An officer pointed his gun at § 87(2)(b)	
D.SGT Mervin Bennett	Abuse: Sgt. Mervin Bennett threatened § 87(2)(b) with the use of force.	
E.POM Mario Vazquez	Abuse: PO Mario Vazquez searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
F. Officers	Abuse: Officers searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
G. An officer	Abuse: An officer searched § 87(2)(b)'s pocketbook.	

Synopsis

On August 8, 2007, § 87(2)(b) filed her complaint with the CCRB via telephone (Enclosure 8a-c). On August 4, 2007, at approximately 9:45 PM, she left a barbeque at Pelham Bay Park in the Bronx with her friend, § 87(2)(b) and § 87(2)(b)'s brother, § 87(2)(b). § 87(2)(b)'s § 87(2)(b)-old daughter, § 87(2)(b) and his § 87(2)(b)-old goddaughter, § 87(2)(b). They all walked over to § 87(2)(b)'s vehicle, which was parked at Colonial Avenue and East 196th Street in the Bronx. They all got inside the vehicle and as § 87(2)(b) began to pull out of his parking spot, they were pulled over by PO Mario Vazquez and PO Earl Quinones, who were in a marked police car [Allegations A and B]. PO Vazquez and PO Quinones were informed by § 87(2)(b)'s nephew, § 87(2)(b) that § 87(2)(b) was wanted for § 87(2)(b). PO Vazquez and PO Quinones called for back-up and § 87(2)(b) estimated that between 15 to 30 police officers responded to the location. § 87(2)(b) was instructed to exit the vehicle. § 87(2)(b) was then instructed to exit and when she did, she observed an officer, PO2, with his gun pointed in her direction [Allegation C]. Sgt. Bennett then instructed her to put her hands up. § 87(2)(b) put her hands up "low" and Sgt. Bennett, over the loudspeaker, allegedly told her that if she did not put her hands up "there is going to be some shooting out here tonight" [Allegation D]. After the other civilians were out of the vehicle, PO Vazquez and other unidentified officers allegedly began searching the car [Allegations E and F]. § 87(2)(b) also saw an officer, PO4, search through her pocketbook [Allegation G]. § 87(2)(b) was released at the scene but § 87(2)(b) and § 87(2)(b) were taken to the stationhouse. § 87(2)(b) was released with a summons and § 87(2)(b) was arrested for § 87(2)(b).

This case was assigned to Inv. Jennine Giordano and was reassigned to Inv. Hilary Hudson on July 9, 2008, § 87(2)(g)

§ 87(2)(g)

Summary of Complaint

During a phone conversation with § 87(2)(b) on September 6, 2007, she stated that she only corresponds with § 87(2)(b) through mail and said she would bring his address to her interview. § 87(2)(b) was interviewed at the CCRB on September 12, 2007 (Enclosure 9a-d). Her statements were consistent. § 87(2)(b) is a § 87(2)(b)-old black female, 5'3," 150 lbs., and has black hair and brown eyes. § 87(2)(b)

On August 4, 2007, at approximately 3:00 PM, § 87(2)(b) arrived at Pelham Bay Park for an annual family barbeque. At approximately 9:45 PM, § 87(2)(b) exited the park with her friend § 87(2)(b) and § 87(2)(b)'s brother, § 87(2)(b). They were also with two children named § 87(2)(b) and § 87(2)(b) who were between the ages of § 87(2)(b). The five individuals walked to § 87(2)(b)'s vehicle, which was parked in the vicinity of Colonial Avenue and East 196th Street in the Bronx, a residential area approximately ten minutes from the park. § 87(2)(b) was going to give § 87(2)(b) a ride home.

Upon reaching § 87(2)(b)'s burgundy Chevy Lumina, which had North Carolina license plates, § 87(2)(b) placed folding chairs into the trunk. § 87(2)(b) sat in the driver seat, § 87(2)(b)

§ 87(2)(b) sat in the front passenger seat, and § 87(2)(b) sat directly in back of § 87(2)(b) with the children in the back seat. All 5 individuals put on their seatbelts. As § 87(2)(b) was pulling out of the parking spot, § 87(2)(b) saw a marked police vehicle with flashing lights approach the front side of their vehicle and drive slowly past their vehicle so that the driver of the police vehicle was directly next to § 87(2)(b). Once the police vehicle reached the corner, it made a U-turn and stopped approximately 4 or 5 car lengths behind § 87(2)(b)'s vehicle. PO1, a white male with dark hair who was seated in the passenger side of the vehicle, made an announcement over the loudspeaker to "stop and turn off the car." § 87(2)(b) complied. § 87(2)(b) turned around in her seat and saw additional police vehicles arrive, containing uniformed and plainclothes officers. § 87(2)(b) estimated seeing between 15-30 officers at the scene. § 87(2)(b) could not provide a further description for PO1 since he was seated in the vehicle.

§ 87(2)(b) was extremely hot in the car and opened the car door to get some air in the vehicle. PO1 said out of the loudspeaker, "Close the car door." § 87(2)(b) yelled out of the door that she was hot but closed the door. PO1 instructed § 87(2)(b) to open the car windows. § 87(2)(b) opened the driver side door and yelled out, "I can't open the driver side window because there is a short in the wiring." An officer instructed § 87(2)(b) to exit the vehicle but § 87(2)(b) was not sure which officer it was. Meanwhile, none of the officers ever approached § 87(2)(b)'s vehicle. When § 87(2)(b) exited, the officer instructed him to place his hands on the vehicle and then instructed him to back up towards the police vehicle.

The officer then instructed § 87(2)(b) to exit the vehicle. When § 87(2)(b) exited, she observed PO2 approximately two or three car lengths in front of her, kneeling on the ground with one knee, pointing his firearm in her direction. PO2 was also a uniformed middle-aged white male with black hair. However, § 87(2)(b) said when she initially filed her complaint that PO2 was about four car lengths behind her on the sidewalk and had either blonde or brown hair. PO2 was the only officer that § 87(2)(b) had full view of because the rest of the officers were "hiding" behind police vehicles and vehicles parked on the street. § 87(2)(b) believed that at some point PO1 handed the loudspeaker over to PO3, who had arrived at the scene after PO1. PO3 was a dark-skinned, bald Hispanic male, approximately 5'5," and was a sergeant in plainclothes. § 87(2)(b) heard another officer refer to PO3 as a sergeant. PO3 was identified through the investigation as Sgt. Mervin Bennett. Sgt. Bennett instructed § 87(2)(b) over the loudspeaker to "turn around" and to "put her hands up." Sgt. Bennett said, "I said to put your hands up." § 87(2)(b) raised her hands low. Sgt. Bennett said, "No, put your hands up and if you don't put your hands up there is going to be some shooting out here tonight." Sgt. Bennett instructed § 87(2)(b) to walk backwards towards the police vehicles. § 87(2)(b) turned so that her back was facing the officers.

Sgt. Bennett then instructed § 87(2)(b) to exit the vehicle. After all three adults exited the vehicle, § 87(2)(b) and § 87(2)(b) informed the officers that there were two young girls in the vehicle. § 87(2)(b) pointed out that it "may not have been obvious the girls were in the vehicle because their heads would not have been visible through the front or rear windshield." Immediately after informing the officers about the children, an unknown number of officers approached the vehicle and removed the two girls.

§ 87(2)(b) was standing in the street when she was handcuffed. After she was handcuffed an officer pulled her by the cuffs in order to move her closer to the curb. As § 87(2)(b) stood at the corner, approximately four car lengths away from § 87(2)(b)'s vehicle, she observed about 5 or 6 officers open each door of the vehicle, lean their bodies halfway into the vehicle and search through it. § 87(2)(b) could not provide physical descriptions for the officers who searched the vehicle except for the fact that they were all males between 5'7" and 6'0" and were dressed in plainclothes and uniform. Sgt. Bennett did not assist in searching the vehicle. § 87(2)(b) did not think she would be able to recognize any of these officers through photos because she was so "traumatized." PO4, a white male with black hair, removed § 87(2)(b)'s pocketbook from the front passenger seat, placed it on top of the vehicle and searched through it. PO4 did not remove any items from § 87(2)(b)'s pocketbook. § 87(2)(b) did not observe the officers remove any other objects from the vehicle. While this was going on, § 87(2)(b) was standing on the right side of § 87(2)(b) and § 87(2)(b) was standing a little further away in the street.

Sgt. Bennett then walked over towards § 87(2)(b) and said, "There have been some charges brought up against you. We have to hold all of you here to see what is going on." § 87(2)(b) overheard one of the officers inform § 87(2)(b) that "they had to take him in" because he had an open bottle of beer in the back seat of the vehicle. Some of the residents in the area exited their homes to see what was occurring.

§ 87(2)(b)'s handcuffs were removed and she was released from the scene. § 87(2)(b) was issued two summonses at the scene. He and § 87(2)(b) were taken to the precinct. § 87(2)(b) was summonsed and released. § 87(2)(b) later found out that § 87(2)(b) was charged with § 87(2)(b). § 87(2)(b) was not aware of § 87(2)(b) having any warrants or being "wanted" in any other state. § 87(2)(b) also learned later that § 87(2)(b) did not have a New York State Driver's license.

§ 87(2)(b) provided a telephone number for § 87(2)(b) and stated that he resides in § 87(2)(b). She stated that § 87(2)(b) was incarcerated at an unknown prison in § 87(2)(b) and would provide the CCRB with the information at a later date. Because the CCRB needed contact information for § 87(2)(b) and § 87(2)(b) and needed to make arrangements to show § 87(2)(b) a photographic array, voice messages were left for her on October 17, 2007, October 29, 2007, November 14, 2007, and December 17, 2007. Letters were mailed to § 87(2)(b) on October 29, 2007 and November 20, 2007, neither of which was returned to the CCRB. § 87(2)(b) has not contacted the CCRB in response to the voice messages or letters.

Results of Investigation

§ 87(2)(b) (Victim)

When the telephone number § 87(2)(b) provided for § 87(2)(b) was called on September 6, 2007 and October 17, 2007, the line was disconnected. On October 29, 2007, a female answered and stated that she had had the phone number for a while and was not familiar with a man named § 87(2)(b).

A search in WhitePages returned negative results for § 87(2)(b) in and around upstate New York. A LexisNexis search provided a hit for § 87(2)(b) in § 87(2)(b). A reverse search in WhitePages for this address returned negative results. Letters were mailed to the § 87(2)(b) address on October 29, 2007 and November 7, 2007 but were subsequently returned to the CCRB.

The 45th Precinct command log provided an address for § 87(2)(b) in § 87(2)(b). A reverse search in WhitePages returned negative results for § 87(2)(b) or a corresponding telephone number. A search in the DMV database indicated that § 87(2)(b) resided at Apartment § 87(2)(b). A subpoena sent to Verizon returned negative results for a phone number for Apartment § 87(2)(b). A letter was mailed to § 87(2)(b) on January 4, 2008. He contacted the CCRB in response to the letter on January 9, 2008, and stated that he would like to provide a statement about the incident (Enclosure 31i). He confirmed his address and phone number. Also present during the incident was § 87(2)(b) his § 87(2)(b) year-old daughter, and § 87(2)(b) his § 87(2)(b)-old goddaughter. § 87(2)(b) was issued a summons for § 87(2)(b) and he already paid it. He provided an address for § 87(2)(b) but stated that he did not know the name or telephone number of the § 87(2)(b) correctional facility. Because he lived two hours away from New York City, § 87(2)(b) scheduled a phone interview for January 23, 2008 and agreed to provide the CCRB with a notarized statement. The undersigned investigator left a voice message for § 87(2)(b) on January 23, 2008. A female called back shortly after and stated that was the wrong number. A letter was mailed to § 87(2)(b) on January 23, 2008. The letter was not returned to the CCRB and § 87(2)(b) has not contacted the CCRB.

§ 87(2)(b) (Victim)

On August 10, 2007, a letter was mailed to § 87(2)(b) at the address on his BADS report. The letter was returned to the CCRB. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

When his attorney, § 87(2)(b), was reached via telephone on October 26, 2007, she stated that she represented § 87(2)(b) for a brief time while he was in New York, prior to his extradition to § 87(2)(b). She had no further information about him or his whereabouts and could not provide any contact information for him in § 87(2)(b). Although § 87(2)(b) provided an address for § 87(2)(b) at the unknown facility in § 87(2)(b) checks performed on Google and WhitePages showed that the address did not exist. A search of all correctional facilities in § 87(2)(b) failed to produce a match for the address. The CCRB was thus unable to reach § 87(2)(b).

Witnesses Not Interviewed

Although § 87(2)(b) and § 87(2)(b) were witnesses to this incident, they were not contacted by the CCRB. § 87(2)(g)

Identification of Officers Interviewed

PO Mario Vazquez was identified as § 87(2)(b)'s arresting officer from his arrest report (Enclosure 11a-b). The SPRINT indicated that Sector E2 called for a 10-85 and that the patrol sergeant and Sector K responded (Enclosure 23a-b). According to the 45th Precinct roll call, PO Vazquez and PO Earl Quinones were assigned to Sector E2 and the patrol supervisor was Sgt. Mervin Bennett (Enclosure 25a-d). The roll call also indicates that PO David Moshier and PO James Murphy were assigned to Sector K1. Consequently, PO Vazquez, PO Quinones, Sgt. Bennett, PO Moshier, and PO Murphy were interviewed.

Officer Statements

PO Mario Vazquez

UF 61 (Enclosure 10): On August 4, 2007, at 9:10 PM, § 87(2)(b) was observed operating a motor vehicle and upon further investigation was discovered to have suspensions on his New York State ID card. Sgt. Mervin Bennett was the approving supervisor.

Arrest report (Enclosure 11a-b): According to the arrest report for § 87(2)(b) PO Vazquez was approached by § 87(2)(b) -old § 87(2)(b) who informed PO Vazquez that he knew the location of a suspect who was wanted for § 87(2)(b). PO Vazquez canvassed the area and saw the suspect, § 87(2)(b) dressed in black shorts, a T-shirt or tank top, and white sneakers, on the northwestern corner of East 196th Street and Colonial Avenue in the Bronx. § 87(2)(b) entered a motor vehicle and drive off without putting on his seatbelt. § 87(2)(b) was pulled over and upon further investigation it was determined that he had suspensions on his New York State ID card. § 87(2)(b) was taken to the 45th Precinct stationhouse, where it was confirmed that he was wanted § 87(2)(b). § 87(2)(b) faxed the warrants to the 45th Precinct (Enclosure 26a-c).

PO Mario Vazquez was interviewed at the CCRB on April 17, 2008 and September 26, 2008 (Enclosures 13a-c and 14a-b). His is a § 87(2)(b) -old Hispanic male, 5'11," 185 lbs., and has brown hair and brown eyes. On August 4, 2007, PO Vazquez worked the hours of 1500x2335 and was assigned to Sector E with PO Earl Quinones. PO Vazquez was dressed in uniform and was operating RMP #1927. His memo book states that at 9:10 PM, one male flagged down the RMP and reported a possible male who was wanted for § 87(2)(b) (Enclosure 12a-c). One male was arrested at 9:56 PM in the vicinity of East 196th

Street and Colonial Avenue in the Bronx. At 10:20 PM, PO Vazquez processed the arrest for a suspended license. The perpetrator also had an open warrant regarding a § 87(2)(b).

At 9:10 PM on August 4, 2007, PO Vazquez and PO Quinones were on routine patrol when they were flagged down by a young black male (§ 87(2)(b)), who appeared to be approximately 15-years-old near the Pelham Bay Park subway station. § 87(2)(b) was alone and he ran over to PO Vazquez and PO Quinones's RMP and informed them that he knew the location of someone who was wanted for § 87(2)(b).

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Since PO Vazquez and PO Quinones had been driving down a one way street, they turned their vehicle around and approached the corner of East 196th Street and Colonial Avenue. Half a block away from them they observed a male who matched the physical description that the young male had provided them with. The male, who was subsequently identified as § 87(2)(b) was approaching his sedan that was parked in the middle of East 196th Street. PO Vazquez could not recall whether the license plate of the vehicle was out of state. § 87(2)(b) was with two other adults, a male and a female, who were identified in the investigation as § 87(2)(b) and § 87(2)(b) respectively. § 87(2)(b) was walking in the street while the other two adults were on the sidewalk. PO Vazquez could not recall whether there were any young children with them.

Initially, PO Vazquez and PO Quinones remained parked on the corner as they watched the civilians to see their reaction. When § 87(2)(b) who was walking in the direction of the RMP, noticed the police vehicle he began walking quicker to his vehicle and threw a folding chair into either the back seat or the trunk of the vehicle and quickly got into the driver seat of the vehicle. § 87(2)(b) entered the back seat of the vehicle and § 87(2)(b) entered the front passenger seat of the vehicle. PO Vazquez did not recall any young children entering the vehicle.

By the way § 87(2)(b) reacted and the fact that his physical and clothing description matched that given by § 87(2)(b), PO Vazquez and PO Quinones decided to stop him. PO Vazquez and PO Quinones put on their lights and approached the rear of § 87(2)(b)'s vehicle. PO Vazquez could not recall with certainty whether § 87(2)(b) had started his vehicle or whether he began driving away when they approached his vehicle. PO Vazquez could not recall whether § 87(2)(b) put on his seatbelt. PO Vazquez and PO Quinones exited their RMP and remained behind their car doors for cover, since they decided they were conducting a felony car stop and had their guns pointed. PO Vazquez tried to make an announcement over his vehicle loudspeaker but it did not work. PO Vazquez called a 10-85 to get an additional unit that had a working loudspeaker. PO Vazquez instructed the occupants to roll down their windows; however, since PO Vazquez's loudspeaker was not working, it was possible they could not hear him. While PO Vazquez and PO Quinones waited for an additional unit to arrive they remained behind the doors of their RMP with their guns pointed. None of the occupants in the vehicle had attempted to exit the vehicle before the additional units arrived.

After approximately five minutes, Sgt. Bennett arrived at the scene along with a couple of other sector cars. PO Vazquez could not identify the additional units that arrived. Sgt. Bennett, who was in a marked patrol car, pulled up directly next to PO Vazquez and PO Quinones' vehicle. PO Vazquez and PO Quinones explained the situation to Sgt. Bennett. Sgt. Bennett did not exit his RMP and used his loudspeaker to instruct all of the occupants in the vehicle to exit separately. PO Vazquez could not recall the exact statement Sgt. Bennett made to the occupants over the loud speaker. PO Vazquez believed that Sgt. Bennett instructed § 87(2)(b) to exit the vehicle first, § 87(2)(b) to exit next and § 87(2)(b)

§ 87(2)(b) to exit last. Although PO Vazquez said that all of the individuals were detained so that the officers could determine exactly what was happening, he could not remember if all of the occupants of the vehicle were handcuffed. PO Vazquez never made an announcement over a loudspeaker and as far as he knew, Sgt. Bennett was the only officer who did so. PO Vazquez was not aware of any other officers drawing or pointing their firearms while the occupants of the vehicle were asked to exit. PO Vazquez never stated or heard any officers state, "If you don't put your hands up there is going to be some shooting out here tonight." PO Vazquez and PO Quinones remained by their vehicle the entire time and never approached § 87(2)(b)'s vehicle. PO Vazquez and PO Quinones kept their guns pointed as the passengers were exiting. Sgt. Bennett never approached § 87(2)(b)'s vehicle.

Once all of the occupants exited the vehicle, there were unidentified officers on the sidewalk who then dealt with each of the occupants. Since PO Vazquez remained by his vehicle with his partner and Sgt. Bennett, he was not entirely sure what occurred with the occupants of the vehicle once they exited.

After the occupants exited the vehicle and § 87(2)(b) was handcuffed, PO Vazquez conducted a search of § 87(2)(b)'s vehicle. PO Vazquez could not recall which officers, if any, assisted him in searching the vehicle. Specifically, PO Vazquez searched the area of the driver side door and looked under the driver side seat as well as the back seats of the vehicle. PO Vazquez searched the vehicle to ensure that there were no weapons. PO Vazquez never searched the trunk or the glove compartment of the vehicle. During the vehicle search, PO Vazquez did not recall seeing a pocketbook or bag inside of the vehicle and thus did not search through a pocketbook and did not observe any other officers do so. When asked if there had been a pocketbook present, PO Vazquez clarified that "if a weapon could legitimately fit inside of the bag than it will be checked for safety purposes." PO Vazquez was not sure whether that would still constitute part of a vehicle search or if it would be considered a search of a person. During the search, PO Vazquez noted that there was an open container of alcohol in the front passenger seat and stated that an unknown officer issued § 87(2)(b) a summons for the container.

PO Vazquez went back to Pelham Bay subway station and transported § 87(2)(b) to the scene, where he positively identified § 87(2)(b) from inside of the vehicle. PO Vazquez asked § 87(2)(b) for his identification and he kept insisting that his name was § 87(2)(b) instead of § 87(2)(b). § 87(2)(b) finally provided PO Vazquez with an out of state license. When PO Vazquez and PO Quinones transported § 87(2)(b) to the precinct, § 87(2)(b)'s vehicle was still there. § 87(2)(b) and § 87(2)(b) were also there, as well as several other unknown officers.

Although the UF 61 and arrest report noted that § 87(2)(b) was not wearing a seatbelt and had a suspended license, PO Vazquez stated that the basis for the vehicle stop was based purely on the information that was obtained from § 87(2)(b). PO Vazquez could not estimate how many officers arrived at the scene. At the precinct, the officers confirmed that § 87(2)(b) had an outstanding warrant for § 87(2)(b). PO Vazquez did not complete a voucher for § 87(2)(b)'s vehicle and stated he would have been the officer to do so.

PO Earl Quinones

PO Earl Quinones was interviewed at the CCRB on March 17, 2008 (Enclosure 16a-c). He is a § 87(2)(b)-old Asian male, 5'8," 185 lbs., with black hair and brown eyes. On August 4, 2007 PO Quinones worked the hours of 1500x2335 and was assigned to Sector E with PO Mario Vazquez. He was dressed in uniform and assigned to marked patrol car # 1927. PO Quinones was the recorder. PO Quinones noted in his memo book that at 9:10 PM, one male flagged them down regarding possible male wanted for § 87(2)(b) (Enclosure 15a-d). At 9:56 PM, one person was arrested on the corner of East 196th Street and Colonial Avenue. The officers arrived at precinct at 10:10 PM to process arrest. PO Quinones had several notes written on his fly sheet, including § 87(2)(b) black hat, white shirt, § 87(2)(b). § 87(2)(b)

PO Quinones and PO Vazquez decided to make a felony car stop vehicle based on the information they obtained from the § 87(2)(b)-old male § 87(2)(b). § 87(2)(b) started his car and had driven about

five feet away from the parking spot before he and PO Vazquez stopped his vehicle. PO Quinones was not sure whether § 87(2)(b) had put on his seatbelt as he initially began driving away. § 87(2)(b)'s vehicle had North Carolina license plates.

PO Quinones never heard an officer say, "If you don't put your hands up, there is going to be some shooting up in here." PO Quinones could not estimate how many officers arrived at the scene and could only identify Sgt. Bennett. PO Quinones stated that PO Vazquez searched § 87(2)(b)'s vehicle in order to check for weapons. PO Quinones did not assist but he watched PO Vazquez conduct the search. PO Vazquez leaned inside of the vehicle and searched around the floor of the front driver seat. PO Vazquez never searched through the trunk of the vehicle or the glove compartments. PO Quinones believed there were two additional uniformed officers that assisted PO Vazquez in leaning into the vehicle and searching § 87(2)(b)'s vehicle. PO Quinones never observed PO Vazquez or any other officers remove or search through a pocketbook. PO Vazquez indicated that if a pocketbook was found it would have been given back to the owner. PO Quinones stated that he believed permission would have to be obtained from the owner of the pocketbook before it could be searched.

PO Quinones did not know why § 87(2)(b) was issued a summons or if he filled out a summons for § 87(2)(b). PO Quinones was not informed that there was an open bottle of alcohol found inside of the vehicle.

Sgt. Mervin Bennett

Sgt. Mervin Bennett was interviewed at the CCRB on March 20, 2008 (Enclosure 18a-c). He is a § 87(2)(b) old black male, 5'7," 180 lbs., with black hair and brown eyes. On August 4, 2007, Sgt. Bennett worked the hours of 1450x2357 and was the patrol supervisor. Sgt. Bennett's driver was PO Jose Martinez. He was dressed in uniform and assigned to a marked patrol car. Sgt. Bennett did not have any entries in his memo book regarding this incident (Enclosure 17a-b).

At approximately 10:00 PM on August 4, 2007, Sgt. Bennett and PO Martinez were on patrol within the confines of the 45th Precinct, specifically in the area of City Island, when he overheard a radio call from a sector that was being manned by PO Vazquez and PO Quinones. PO Vazquez specified that he and his partner had a car stop and requested additional units to respond to the location. Sgt. Bennett went over the radio immediately after and spoke directly with PO Vazquez to inform him that he was on his way. Sgt. Bennett estimated that it took him approximately ten minutes to arrive at the incident location and that he was approximately thirty blocks from the incident location when he received the radio run to respond. Upon responding to the location, there were numerous marked patrol cars already present at the location. Sgt. Bennett could not identify any other officers at the scene besides PO Vazquez, PO Quinones, and PO Martinez, but estimated that there were between 15 to 20 officers at the scene. Sgt. Bennett did not observe PO Vazquez and PO Quinones draw or point their firearms.

Sgt. Bennett pulled up directly behind PO Vazquez and PO Quinones' marked patrol car, which was approximately three or four car lengths away from the vehicle that was stopped. PO Vazquez and PO Quinones were standing near their vehicle, which was parked in the middle of the street. PO Vazquez instructed the occupants of the vehicle, who were subsequently identified as the driver, § 87(2)(b) and two passengers, § 87(2)(b) and § 87(2)(b) to exit the vehicle one by one. Sgt. Bennett could not specify exactly where all of the passengers were seated in the vehicle. PO Vazquez used his RMP loudspeaker to instruct the individuals to exit their vehicle. When asked if he recalled PO Vazquez indicating over the radio run that his loudspeaker in his RMP had been broken, Sgt. Bennett then stated he did recall something like that and then stated that it is possible PO Vazquez used a loud speaker from a different RMP. Sgt. Bennett never issued any commands to any of the occupants of the stopped vehicle. Sgt. Bennett never stated or heard an officer tell the occupants of the vehicle, "If you don't put up your hands, there will be some shooting up in there." Sgt. Bennett never observed PO Vazquez and PO Quinones approach the vehicle they had stopped.

All of the occupants in the vehicle complied and exited the vehicle. Sgt. Bennett could not say for sure whether all of the occupants were handcuffed when they exited the vehicle. Sgt. Bennett believed there

were children present but he could not recall how many. When asked when the children were removed from the vehicle, Sgt. Bennett believed they were removed prior to the adults being removed. Sgt. Bennett specified that all of the occupants were brought to the sidewalk area; however, his attention remained on the vehicle until all of the occupants were fully exited. Sgt. Bennett did not know which officers dealt with the occupants on the sidewalk.

PO Vazquez and PO Quinones later informed Sgt. Bennett that a young male had flagged their patrol car and informed them that he knew the whereabouts of a male § 87(2)(b) who § 87(2)(b) § 87(2)(b). PO Vazquez and PO Quinones located § 87(2)(b) and ultimately stopped his vehicle in order to conduct an investigation. Sgt. Bennett believed that PO Vazquez and PO Quinones further explained to him that they stopped § 87(2)(b)'s vehicle, which had started to drive away from the scene, for a vehicle for a Vehicle Traffic Law (VTL) violation, which he believed to be a seat belt infraction.

Sgt. Bennett did not know if a search of the vehicle was conducted but assumed that a search was conducted for safety purposes. Sgt. Bennett specified that even though he was the supervisor at the scene, he would not necessarily have to authorize or instruct any officers to search a vehicle that was stopped. Sgt. Bennett explained that during a felony car stop, once all of the occupants of the vehicle are secured, a vehicle can be searched for investigative purposes. When asked if a bag that is searched in a vehicle is an extension of a vehicle search or a person search, he explained that a bag can be searched if it is in a "lungeable" area in order to ensure that there are no weapons inside. Sgt. Bennett never observed any officers search through the vehicle or remove any pocketbooks from the vehicle.

Sgt. Bennett confirmed that he was present at the scene until § 87(2)(b) was transferred to the precinct. Sgt. Bennett remained with PO Vazquez and PO Quinones throughout the incident. Sgt. Bennett was not aware of any summonses being issued to any of the occupants of the vehicle. Sgt. Bennett was not aware of any open containers of alcohol being found inside of the vehicle. Sgt. Bennett believed that Sgt. Michael Guenther, the anti-crime supervisor, was also present at the scene.

PO James Murphy

PO James Murphy was interviewed at the CCRB on October 14, 2008 (Enclosure 22a-b). He is § 87(2)(b) old white male, 6'1," 215 lbs., with a bald head and green eyes. On August 4, 2007, he worked the hours of 1500x2335 and was assigned to sector K. He did not know if he was assigned to K1 or K2. He was working with PO David Moshier, was dressed in uniform, and was assigned to RMP #2123. His memo book states that at 9:20 PM, he responded to a 10-85 called by Sector E at East 196th Street and Colonial Avenue (Enclosure 21a-c).

PO Murphy stated that Sector E called for a 10-85 at about 9:20 PM. Although he was not sure when he learned this, Sector E was attempting to conduct a felony car stop but the loudspeaker in their RMP was not functioning properly. PO Moshier drove their RMP over to East 196th Street and Colonial Avenue. Sector E [PO Mario Vazquez and PO Earl Quinones] had a vehicle stopped about halfway up the block from their car. Sgt. Mervin Bennett and his partner [PO Jose Martinez] were also on scene in a marked car. PO Murphy believed that Sgt. Bennett went over the loudspeaker and instructed the individuals to get out of the car. He could not remember what specific instructions Sgt. Bennett gave to the individuals. He did not hear an officer threaten to shoot the civilians if they did not exit the car. He did not indicate if he saw officers with their guns drawn or pointed.

PO Murphy and PO Moshier stopped behind the civilians and the officers' cars that were already there and parked. They both exited the RMP and remained there. PO Murphy stated that two or three adults and a child were taken out of the car and brought over to where he was standing. Sgt. Bennett, PO Vazquez, and PO Quinones were trying to determine what was going on. By then, numerous other police cars were on scene. PO Murphy did not see the civilians' vehicle being searched, did not search the vehicle himself, and did not see a pocketbook being searched.

PO Murphy and PO Moshier watched the civilians for a no more than 10 to 15 minutes. PO Murphy did not remember if any of the civilians were handcuffed. PO Murphy did not speak to them. PO Murphy and PO Moshier left at 9:53 PM when a 10-34 call [assault in progress] came over for a location a few blocks away.

PO David Moshier

PO David Moshier was interviewed at the CCRB on September 26, 2008 (Enclosure 20a-b). He is a § 87(2)(b) year-old white male, 5'9," 215 lbs., with brown hair and hazel eyes. On August 4, 2007, he worked the hours of 1500x2335 and was assigned to sector K. He was working with PO James Murphy, was dressed in uniform, and was assigned to RMP #2123. His memo book states that at 9:20 PM, he responded to a 10-85 at East 196th Street and Colonial Avenue (Enclosure 19a-b).

PO Moshier stated that PO Mario Vazquez from Sector E went over the police radio and requested that a marked vehicle with a working PA system respond to Colonial Avenue and East 196th Street. PO Vazquez was dealing with a pick-up job. PO Moshier drove with PO Murphy over to the location, as they were not far away.

Upon arriving at Colonial Avenue and East 196th Street, PO Moshier immediately saw that officers were conducting a "felony car stop" and "the car was stopped at gunpoint." PO Moshier realized that PO Vazquez wanted the PA system in order to give instructions to the driver of the vehicle; however, he did not remember if an officer or officers were using the PA system when he arrived there. Although he was not sure if this information was also given over the radio or if he learned it later at the scene, but PO Moshier said a man in the car § 87(2)(b) was allegedly wanted for § 87(2)(b). Thus, "due to that alone," officers conducting the car stop do not know if there is a weapon in the car, if the suspect is armed and dangerous, or if the suspect knows that the police are aware of his warrant.

PO Moshier believed that PO Vazquez, PO Quinones, Sgt. Bennett, and PO Martinez were already on scene. PO Moshier thought that he and PO Murphy were the next set of officers to arrive. PO Moshier did not recall if he drew his firearm. He stated that if he was the third on scene he probably had his gun drawn and pointed, too, until the individuals were removed from the vehicle; however, he could not remember.

PO Moshier was not sure when, but other officers arrived at the scene in response to the 10-85. PO Moshier did not remember who the other officers were. Two males, a female, and a child between 5 to 12-years-old who were in the car were instructed over the PA system to exit and walk backwards. He never heard an officer, over the PA system, threaten to shoot the civilians.

Other officers brought the individuals over to the southeast corner Colonial Avenue and East 196th Street. PO Moshier, Sgt. Bennett, and probably PO Murphy were "pretty much keeping an eye on them" at the corner. While that was going on, other officers were trying to find out if § 87(2)(b) was wanted in § 87(2)(b). Unknown officers, possibly PO Vazquez and PO Quinones, were searching the car to make sure there were no weapons inside it. PO Moshier did not search the vehicle and he could not say where the officers were searching in the vehicle, as he was about 30 feet away. He did not see an officer or officers search through a pocketbook. Other officers brought the witness who approached the officers initially about § 87(2)(b) over to the scene, to make an ID.

PO Moshier was at the corner until he and PO Murphy left to respond to a 10-34 (assault in progress) at 9:55 PM. PO Moshier estimated that he was on the corner for about 5 minutes. When he left, the individuals were still there and the vehicle was there, too.

Officers Not Interviewed

Sgt. Bennett stated that PO Jose Martinez and Sgt. Michael Guenther were also present during the incident. § 87(2)(g)

Police Documents

SPRINT (Enclosure 23a-b)

At approximately 9:21 PM on August 4, 2007, Sector E2 made a vehicle stop for a possible crime (10-10V2) at Colonial Avenue and East 196th Street in the Bronx. Sector E2 immediately called for a 10-85 because they needed an additional unit to the location. Sector K radioed that they were responding. The SPRINT indicates that Sector K arrived at 9:21 PM. An unknown sector went over the air at 9:27 PM and requested a unit with a working PA system to respond. The patrol sergeant arrived on scene at 9:28 PM. Sector K left the location at 9:53 PM. Sector E2 made two arrests at 9:57 PM. The SPRINT does not indicate when Sector E2 and the patrol sergeant left the scene, nor does it note any other officers responding.

Command Log (Enclosure 24)

The 45th Precinct command log for August 4, 2007, at 10:05 PM, indicates that § 87(2)(b) and § 87(2)(b) were brought in as arrests by PO Vazquez and PO Quinones, respectively. § 87(2)(b) was released at 10:40 PM with summons number § 87(2)(b). § 87(2)(b) was transported to Bronx Central Booking at 3:10 AM on August 5, 2007.

NYPD Name Index Search (Enclosure 27)

Two name index searches were run for § 87(2)(b) on August 4, 2007, at 9:45 PM. Additional searches were run for his name on that date between 10:47 PM and 11:18 PM.

NYSPIN (Enclosure 28a-d)

A NYSPIN response screen printout at 10:47 PM revealed that § 87(2)(b) was wanted in § 87(2)(b). NYSPIN also indicated that in New York State, § 87(2)(b) has a non-driver ID only. His driver's license was revoked on § 87(2)(b).

Arrest Warrants (Enclosure 26a-c)

Warrants § 87(2)(b) were issued on § 87(2)(b) from § 87(2)(b). The warrants indicate that § 87(2)(b) was wanted for the following offenses that occurred on § 87(2)(b).
§ 87(2)(b)
§ 87(2)(b)

Status of Criminal Charges (Enclosure 29v-w)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Status of Summons (Enclosure 31n)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Complainant and Victim's Criminal Conviction History (Enclosures 29a-u and 30a-p)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[illegible]

Complainant and Victim's CCRB History (Enclosures 5, 6, and 7)

This is § 87(2)(b) and § 87(2)(b)'s first complaint with the CCRB.

Officers' CCRB History (Enclosures 2, 3, and 4a-b)

PO Vazquez, a 3-year member of the NYPD, has not been the subject of any substantiated CCRB allegations. PO Quinones, a 2-year member of the NYPD, has not been the subject of any substantiated CCRB allegations. Sgt. Bennett, a 10-year member of the NYPD, has not been the subject of any substantiated CCRB allegations.

Conclusions and Recommendations

Identification of Subject Officers

According to the SPRINT and the officers' own testimony, PO Vazquez and PO Quinones were the officers who initially attempted to stop § 87(2)(b)'s vehicle. § 87(2)(g)

The investigation determined that PO3 was Sgt. Bennett, given that he matched the physical description provided by § 87(2)(b) and PO Vazquez and PO Quinones stated that Sgt. Bennett gave the instructions over the loudspeaker. § 87(2)(g) PO Vazquez admitted to searching § 87(2)(b)'s vehicle. § 87(2)(g)

Undisputed Facts

On August 4, 2007, at approximately 9:45 PM, PO Vazquez and PO Quinones were on patrol when they were approached by § 87(2)(b), § 87(2)(f)

PO Vazquez and PO Quinones drove to the location where § 87(2)(b) indicated § 87(2)(b) would be, Colonial Avenue and East 196th Street in the Bronx. § 87(2)(b) and § 87(2)(b) were in § 87(2)(b)'s vehicle and were pulling away when PO Vazquez and PO Quinones pulled over the vehicle. PO Vazquez and PO Quinones called for a 10-85 (additional unit needed) because their loudspeaker was not working. Sgt. Bennett, PO Martinez, PO Murphy, and PO Moshier were some of the officers who responded. PO Vazquez and PO Quinones had their guns pointed at § 87(2)(b)'s vehicle. § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were instructed to exit the vehicle. § 87(2)(b) and § 87(2)(b) were taken to the 45th Precinct stationhouse, where § 87(2)(b) was released with a summons for § 87(2)(b). § 87(2)(b) was arrested for § 87(2)(b).

Facts in Dispute

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(b) and § 87(2)(b) were inside of § 87(2)(b)'s vehicle. § 87(2)(b) alleged that as § 87(2)(b) was pulling out of the parking spot, PO Vazquez and PO Quinones stopped the car. § 87(2)(f)

PO Vazquez and PO Quinones acknowledged that they stopped § 87(2)(b)'s vehicle at Colonial Avenue and East 196th Street. § 87(2)(b), § 87(2)(f)

§ 87(2)(g)

§ 87(2)(b) then alleged that when she exited the vehicle she saw that PO2 had his gun pointed in her direction. The identity of PO2, a uniformed white male, remains unknown because § 87(2)(b) did not consistently describe him. § 87(2)(b) initially said PO2 had blonde or brown hair but later described him as having black hair. PO Vazquez, a Hispanic male with brown hair, and PO Quinones, an Asian male with black hair, were the only officers interviewed at the CCRB who recalled drawing their firearms and pointing them at § 87(2)(b)'s vehicle. PO Moshier, a white male with brown hair, could not say for sure if he removed his gun at the scene.

§ 87(2)(b) said that once she exited the vehicle, Sgt. Bennett told her to put her hands up. When § 87(2)(b) raised her hands slowly, Sgt. Bennett allegedly said, "No, put your hands up and if you don't put your hands up there is going to be some shooting out here tonight." § 87(2)(b) and § 87(2)(b) did not provide statements to the CCRB. Sgt. Bennett denied speaking over the loudspeaker at any point during the incident. PO Vazquez, PO Quinones, and PO Murphy stated that Sgt. Bennett was the officer who gave instructions over the loudspeaker; however, those officers and PO Moshier denied Sgt. Bennett threatening § 87(2)(b). § 87(2)(g)

§ 87(2)(b) alleged that 5 to 6 officers searched § 87(2)(b)'s vehicle. She did not believe she could identify the officers in a photographic array, and her descriptions of those officers were too broad. PO Vazquez admitted to searching the vehicle and said he was the only officer who did so. PO Quinones also corroborated PO Vazquez's searching of the vehicle and thought that two other officers assisted him. Sgt. Bennett and PO Murphy were not certain if the vehicle was searched, and PO Moshier believed the vehicle was searched but could not definitely say which officers conducted the search. PO Vazquez stated that after all of the occupants were out of the vehicle and handcuffed, he searched for weapons in the area of the driver side door, under the driver side seat, and the back seats of the vehicle.

§ 87(2)(b) provided a vague description of PO4, the officer who allegedly searched her pocketbook. Her description of PO4 as a uniformed white male with black hair was similar to the second description she gave for PO2. It was unclear if PO2 and PO4 were one and the same. None of the officers interviewed by the CCRB admitted to searching a pocketbook or seeing a pocketbook being searched at the scene. Further,

§ 87(2)(b) did not respond to several attempts made by the CCRB to contact after her interview and was thus uncooperative for a photo viewing.

Allegation A: PO Mario Vazquez stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B: PO Earl Quinones stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g), § 87(2)(f)

According to Barry Kamins' *New York Search and Seizure*, "Information from an identified citizen that is based on information from a third party can... constitute reasonable suspicion" (Enclosure 1c-d). Further, "the police may... stop an individual whom they believe is the subject of an outstanding warrant until they are able to confirm his identification." § 87(2)(g)

Allegation C: An officer pointed his gun at § 87(2)(b)

§ 87(2)(b) alleged that PO2 had his gun pointed in her direction when she exited the vehicle. § 87(2)(b) Barry Kamins' *New York Search and Seizure* state that police officers face risk-producing circumstances when stopping cars involved in serious crimes and thus it can be argued that police officers, "as a matter of course, are permitted to draw their guns when approaching vehicles involved in serious crimes, even when there is no evidence that weapons were used in the crime" (Enclosure 1e). § 87(2)(g)

Allegation D: Sgt. Mervin Bennett threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

Allegation E: PO Mario Vazquez searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

PO Vazquez admitted to searching the vehicle for weapons once the occupants were out of the car and § 87(2)(b) was in handcuffs. § 87(2)(g) When the vehicle was searched, § 87(2)(b) had not yet been positively identified by § 87(2)(b) § 87(2)(b) been not been asked to provide his identification, and it had not been confirmed that § 87(2)(b) had an open warrant § 87(2)(b). § 87(2)(g)

According to Barry Kamins' *Search and Seizure*, "any [vehicle] search during an investigative car stop must be based on a reasonable belief that the suspect might gain control of a weapon" (Enclosure 1f-i). Kamins also states that once a suspect is removed from the vehicle for inquiry, "an officer may be justified in taking further action where the facts represent an 'actual and specific danger' to the officer's safety." However, Kamins specifies that New York courts have found a vehicle search to be unreasonable when the suspect is questioned outside the car and "in the absence of certain exigencies because there was no longer

an ‘actual and specific danger’ to the officer.” § 87(2)(g)

Allegation F: Officers searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) stated that she could not be able to identify in a photo array the officers who searched the vehicle. Besides PO Vazquez, no other officer admitted to searching the vehicle. § 87(2)(g)

Allegation G: An officer searched § 87(2)(b) s pocketbook.

§ 87(2)(b) alleged that an officer searched her pocketbook but none of the officers interviewed by the CCRB admitted to searching a pocketbook or seeing another officer searching a pocketbook at the scene.

§ 87(2)(g)

Investigator: Hilary Hudson Date:

Supervisor: Date:

Reviewed by: Date:

Reviewed by: Date: